From:	Des Hobson
To:	Edward Snook
Cc:	Scanning; SBC Development Control
Subject:	RE: S/COND/22/0031. Discharge of condition 8 from S/OUT/13/1555. Land North Of A420, Eastern Villages, Swindon. South Marston and Rowborough
Date:	28 June 2023 14:28:02
Attachments:	image001.png image002.png image003.png image004.png

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Hi Ed

The information submitted is not acceptable in its current format.

There is still the fundamental tension that the applicants are changing the layout to suit themselves, but won't change the layout when the LPA asks, claiming this was fixed at outline. As we have been saying for 18 months now the Design Code does not connect this urban development with the landscape around it. Imaginative design would create a much higher quality community, and connection to the environment around it, such as Nightingale Wood.

My last set of comments (17.2.23) were included in the team response.

Comments tracker.
This is helpful – thank you for providing this. The applicant writes (column is not titled):

"Opportunity noted. However DLL scheme won't be approved before SDC is approved, therefore we cannot commit to a re-design thorugh the SDC. But there could be an opportunity to review in relevant CADC." The applicant misunderstands the simplicity of the District Level Licensing scheme for great crested newts. All they need to do is provide prior to determination the Impact Assessment and Conservation Payment Certificate (IACPC) and map, both counter-signed by Natural England. This will confirm this site's acceptance into the District Level Licensing scheme for great crested newts. It will mean that the redesign can be achieved now, providing a higher quality of design for the site. The table says elsewhere *"We are at an advanced stage of this [DLL] process."* Confirmation that DLL has been joined is needed if this is to be relied on in the Design Code (p42).

Strategic Design Code (May 2023)
The applicants still need to address my comments from 15.2.22, below, and before that. I have not repeated them. It continues to be not acceptable in its current format.

As previously, the aspirations in the Design Code are still not supported with clear statements providing meaningful commitments. The applicants say the evidence will be provided in the FLEAMPs, but these have not been provided. If we agree the Design Code without agreeing the FLEAMPs simultaneously, then if the FLEAMPs fall short of our expectations, we will no longer be able to seek improvements to the Design Code. My view is that either substantially more detail is needed in the Design Code now, or the FLEAMPs need to be provided now in support of the Design Code.

With kind regards

Des

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From: Des Hobson
Sent: 26 July 2022 16:17
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Subject: RE: S/COND/22/0031. Discharge of condition 8 from S/OUT/13/1555. Land North Of A420, Eastern Villages, Swindon. South Marston and Rowborough

Hi Ed

This Strategic Design Code continues to be almost devoid of any actual ecological commitments, which is disappointing. It is good that more of the photos are now reflective of the new environments which will be created, rather than over-optimistic.

I recommend that the Strategic Design Code needs significant further detail. My earlier comments below need to be addressed.

Strategic Design Code (Stantec, June 2022, Rev S)
Still seems to be a draft, for example *"Mandatory requirements: • xxxxxx"* on p4.

I recommended that the wording should be revised as follows, providing slightly greater commitments (new words in bold).

5.4.4 *"New planting must enhance existing woodland, hedges and trees and reinforce their retention by creating a mosaic habitat* ***to*** *~~with the aim of~~ maximis***e***~~ing~~ biodiversity* ***and achieve site-wide biodiversity net gain****. Before any detailed planting proposals are submitted advice must be sought from a suitably qualified ecologist and this must be demonstrated to inform design decisions."*

5.4.5 *"Retained landscape within the Site must ~~be allowed to~~ connect into the adjoining countryside creating sustainable wildlife corridors."*

5.4.*12 "Existing hedgerows* ***with ecological value*** *must be protected where**ver** feasible and enhanced through an appropriate maintenance regime…"* I have watered down this commitment. I am not convinced that the hedges within the site are necessarily all worth retaining. All with hedgerow trees should be retained. Greater flexibility may enable you to put greater focus on creating higher quality ecological networks elsewhere. Please seek advice from your ecologist on this.

5.4.14 *"The proposals must establish a rich and diverse green infrastructure strategy incorporating existing trees and hedgerows of value and connecting parks, play areas, formal sports pitches, and wildlife habitats and providing opportunities for* ***ecological enhancement*** *~~mitigation~~ ~~where appropriate~~."*

5.4.*15 "The proposals must establish and reinforce linkages to the open countryside and areas of community woodland ~~where consistent with the overall design~~."*

P41. I am still asking for the South Marston brook to be re-wilded and re-meandered through this site, as it has been through Nightingale Wood. Please could this be addressed. This would contribute significantly to place-making.

5.9 Tree Strategy. The formatting needs sorting out, so it is legible. Please can it be re-submitted for review. The photos need to correctly match the species listed. Far too many fastigiate forms are shown. Natural forms of the species listed should be used except where essential. For example, the fastigiate form of Fagus sp. (beech) will never grow into the beech trees shown in the aspirational image (probably unrealistic for this site) shown on p26. Secondary street trees need to be larger species, rather than the micro-varieties currently listed which will never have any landscape impact.

P50 There is still no meaningful landscape connection being provided with Nightingale Wood. This needs to be addressed as discussed previously.
The photo (p52) supporting "Section A-A Nightingale Wood - Landscape Buffer" is entirely unrealistic, and needs to be changed for something accurate. It shows the woodland edge perhaps 30m away, when the cross section allows for 10m at most.

P75 'SUDs' photo is unrealistic, and needs to be replaced with a photo which shows what a SUDs pond will look like.

With kind regards

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From: Des Hobson
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Subject: RE: S/COND/22/0031. Discharge of condition 8 from S/OUT/13/1555. Land North Of A420, Eastern Villages, Swindon. South Marston and Rowborough

Hi Ed

Summary
Overall, the Design Code (Barton Wilmore, January 2022, Rev K) is still full of warm words and far too little actual substance for it to be acceptable. The Code avoids making clear commitments on the key issues such as biodiversity net gain (5.3.9), instead peppering the document with insignificant commitments such as brash piles (5.3.12). The images imply a quality of neighbourhood which I don't ever think can ever be realised through the current proposals, e.g. wide beech lined avenues and flood plain on p26.

The aspirations in the Design Code are still not supported with clear statements providing meaningful commitments. The applicants say the evidence will be provided in the FLEAMPs, but these have not been provided. If we agree the Design Code without agreeing the FLEAMPs simultaneously, then if the FLEAMPs fall short of our expectations, we will no longer be able to seek improvements to the Design Code. My view is that either substantially more detail is needed in the Design Code now, or the FLEAMPs need to be provided now in support of the Design Code.

Overall, there has been little meaningful progress since my comments on 1.11.21:

- "Good aspiration for biodiversity net gain, but the Design Code needs to be a framework showing what will be delivered and how. There is currently no detail beyond warm words.
- Achievability of biodiversity net gain (BNG) needs to be supported by Defra Biodiversity Metric plus supporting habitat maps and FLEAMP showing what will be delivered where. Level of BNG will need to be in accordance with national and local policy.

- The development needs clear visual and desire line connections with Nightingale Wood. These are currently absent.
- Corridors of woodland planting within the development should be created to connect Nightingale Wood into the development.
- Green infrastructure needs to be of sufficient size and scale for it to function as a *"coherent ecological network"* (NPPF). "Green links, which are a minimum of 10 metre wide" (Design Code 5.3.2) within development parcels will not "create sustainable wildlife corridors" (5.3.6). Nor will tiny green rings around great crested newt ponds.
- Swindon is part of the Natural England District Level Licensing scheme which offers an alternative option for mitigating impacts on great crested newts.
- 'In date' ecological surveys are needed to inform proposals and mitigation. The protected species present may have changed since previous surveys.
- Commitments to provision of street trees are needed now (6.2.9). "Trees to be provided in alternation on either side of the street" (6.2.13) is not the same as "tree-lined" streets (NPPF 2021, para 131)."

Specific comments on the Design Code

5.3.9 The minimum level of biodiversity net gain which will be achieved needs to be stated and expressed as a minimum %. As previously advised this needs to be a minimum of 10% as will be required by the Environment Act, and needs to be ready to adopt the 20% in the draft Local Plan, when this is adopted. If the FLEAMP is being relied on as the supporting evidence this needs to be provided now.

All caveats must be deleted throughout the document. The inclusion of these phrases makes the statements essentially meaningless, e.g. *"where possible", "where necessary", "must look to", "have consideration for", "where appropriate", "where consistent with", "the potential for"* . The Code needs to be clear what will be delivered.

5.3.12 State as *"Footpaths and cycleways must avoid Root Protection Areas",* taking out all the caveats. *"Proposals must include appropriate management statement from a qualified ecologist":* this is vapid, what will actually be done?

Please provide the ecology plans in the Code as separate documents. They are not legible in the pdf.

P37 (and for each subsequent inset map). The maps need to show the areas of the habitats which will be provided. Currently the numbers dotted across the map provide nothing in the way of commitment. Likewise, the bullet points on p38 are meaningless without minimum quantities being provided. For example *"New broad-leaved woodland planting in the form of woodlands, small groups of trees and individual trees"* needs to state the minimum number of each of woodlands, small groups of trees and individual trees. Detail needs to be provided for each bullet point.

The same applies for each of the subsequent inset maps.

5.6 Landscape Concept Masterplan. These seem largely unchanged and do not appear to have addressed the fundamental points raised in our previous meetings. Heading these sections with

“Aspiration” is telling: the Design Code needs to provide commitments, not aspirations. My previous comments on this need to be addressed.

Applicant feedback table (no name or date).
This makes frequent reference to *“the FLEAMP which is to be submitted in parallel to the SDC”.* The FLEAMP needs to be provided.

“Section 5.5 Landscape Enhancement Strategies now clearly defines how the development will relate to existing habitats, identifying where these will be protected.” This is not yet clearly defined – see comments above.

“Clear visual and desire line connections with Nightingale Wood have been established”. I am not seeing evidence of this either.

My concern that *“Corridors of woodland planting within the development should be created to connect Nightingale Wood into the development, so there is not a stark urban edge which does not relate to the countryside beyond”* needs to be addressed. The applicant’s response that *“Proposed woodland corridors through the development parcels are consistent with the approved outline framework”* does not address this.

“A diversion of the watercourse is not currently proposed as it would require EA permission to alter floodplain areas.” EA permission will be needed as it is, so why can’t this also be included?

“It is currently the intention that the DLL scheme will be joined prior to the commencement of construction within 250m of any GCN breeding ponds.” This is not how the District Level Licensing scheme works. The whole site needs to be put into DLL prior to discharge of planning permission. The applicant can’t pick and choose parts of the application site. The IACPC signed by Natural England (NE) and NE’s map showing the same red line boundary as the application site also signed needs to be provided prior to discharge of the planning application. Alternatively, the applicant can go down the route of conventional licensing, but this would mean repeat of GCN surveys this year. The applicant needs to confirm which approach it is taking prior to determination of the relevant part of the planning application.

“A minimum of one in-built bird nesting box to be included per each residential unit or as superseded” needs to be stated in the Design Code. It can be repeated in the FLEAMP.

With kind regards

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